

Vikas Asthana v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 31 March 2023 · WRIT - C No. - 10638 of 2023 · **Provisional theft assessment quashed for fresh Supply Code order.**

HEADNOTE

Provisional assessment dated 23 February 2023 for alleged theft of electricity quashed. The order was vague and confusing, recorded no proper findings, and did not deal with the consumer's objections. The Electricity Department may pass a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. Petition disposed of.

FACTUAL SUMMARY

Vikas Asthana challenged, before the Allahabad High Court, a provisional assessment bill dated 23 February 2023 and the recovery proceedings that followed it. The bill was raised by the Electricity Department in a case of alleged theft of electricity. He said the Department had not considered the objection he had filed, and that the order recorded none of the findings the law requires. Counsel for the Department asked the Court for liberty to pass a fresh order.

REUSABLE CONSTRUCTIONS

1. A provisional assessment for alleged theft of electricity that is vague, records no proper findings, and does not deal with the consumer's objections is liable to be quashed. ¶ 1
2. After that quashing, the licensee may pass a fresh order only by strictly following the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 1

HOLDING-UNITS

HOLDING-UNIT · UP-2005::procedure

provisional assessment for theft — non-speaking order

HOLDING

The provisional assessment order dated 23 February 2023 is vague and confusing. It records no proper findings and does not deal with the objections filed by the consumer in a case of alleged theft of electricity. The order is quashed. The Electricity Department may pass a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 1

FLAG no numbered clause; the order refers only to the procedure prescribed under the U.P. Electricity Supply Code, 2005

PRINCIPLE TAGS

UP-2005::procedure The provisional assessment of 23 February 2023 was quashed because it was vague, recorded no proper findings, and did not deal with the consumer's objections. A fresh order is permitted only if passed strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER HAD COMMITTED THEFT OF ELECTRICITY, AND WHAT AMOUNT IF ANY IS RECOVERABLE

The Court quashed the existing order for want of findings and for failure to deal with objections, and left those questions to a fresh order under the Supply Code. ¶ 1

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.